



## POLICE DEPARTMENT

May 15, 2023

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202107337 (Incident Date: November 16, 2021) regarding Police Officer Gregory Clena, Tax No. 964447 (DADS No. 2023-28257)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202107337, pertaining to Police Officer Gregory Clena. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Clena would be detrimental to the Police Department's disciplinary process.

While the Police Commissioner agrees with most of the findings in this matter, the Police Commissioner does not agree that Charges and Specifications are appropriate. Police Officer Clena conducted a frisk of an individual based on an articulable belief that the individual may have acquired a weapon from either the vehicle's operator or the front seat passenger. Thus, based on the totality of the circumstances, as well as the reasons articulated by Police Officer Clena, the underlying frisk was appropriate.

Given Police Officer Clena's stellar history with the Department, including his lack of prior disciplinary history and lack of prior substantiated CCRB complaints, and in the interest of progressive discipline, the remaining allegations against Police Officer Clena are best addressed with an imposition of a command discipline.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends to retain jurisdiction over this matter. Police Officer Clena will be issued a Schedule "B" Command Discipline with a penalty of three (3) vacation days in connection with Patrol Guide Procedure 212-11 (Investigative Encounters/Search), Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Vehicle Search), and Administrative Guide Procedure 304-11 (4) (Compliance with New York City Right to

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Know Act/Right to Know Business Card). Furthermore, Police Officer Clena will receive no disciplinary action for the alleged violation of Patrol Guide Procedure No. 212-11 (Investigative Encounters/Frisk).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office



ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
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ARVA RICE  
INTERIM CHAIR

May 22, 2023

The Honorable Keechant L. Sewell  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB v. Police Officer Gregory Clena  
Disciplinary Case No.: 2023-28257

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated May 15, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain the above referenced case and issue a Command Discipline. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing this matter, you determined that Charges and Specifications are not appropriate. Instead, you intend to issue a Command Discipline with a forfeiture of 3 vacation days. The CCRB disagrees with your recommendation.

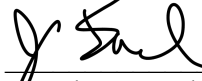
It is undisputed that Police Officer Gregory Clena frisked and searched § 87(2)(b) and searched the vehicle he occupied without obtaining consent to do so. PO Clena also failed to provide a business card to § 87(2)(b). PO Clena could not articulate any factors which created a reasonable suspicion that § 87(2)(b) possessed a weapon. For an officer to frisk and search someone during a traffic stop, the officer must have a reasonable suspicion that the person to be frisked is armed or poses a threat to safety. In addition, the New York City Administrative Code and the Patrol Guide requires an officer to offer a business card to the subject of the police action. In this situation, PO Clena wrongfully frisked and searched § 87(2)(b) and the vehicle he occupied. Hence, PO Clena is guilty of Specifications One (1), Two (2), Three (3) and Four (4) and therefore charges and specifications are warranted in this matter.

Please note that the Statute of Limitations expired on May 16, 2023. The CCRB filed the Charges and Specification on April 18, 2023. The charges were not served on the officer and the CCRB was not notified of the PC’s intent to retain the charge until May 16, 2023 at 5:19 p.m. It

is the CCRB's position that this agency provided DAO sufficient time to serve the officer and this matter is timely.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, it is not appropriate to send a letter informing the CCRB of the your intent on the date the SOL would run. The CCRB requests that in the future, the Department serve the subject officer so that the matter can be discussed without the SOL clouding the discussion. In addition, the CCRB requests an explanation of why a penalty of forfeiture of three (3) vacation days is an appropriate penalty in this case.

Respectfully submitted,



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Jonathan Darche  
Executive Director  
NYC Civilian Complaint Review Board





## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

May 23, 2023

Re: CCRB Case No. 202107337 (Incident Date: November 16, 2021) regarding Police Officer Gregory Clena, Tax No. 964447 (DADS No. 2023-28257)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 22, 2023, concerning the CCRB case involving Police Officer Gregory Clena, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Clena, for the reasons expressed in my March 15, 2023 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding. Please note that Police Officer Clena was issued a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days in connection with Patrol Guide Procedure 212-11 (Investigative Encounters/Search), Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Vehicle Search), and Administrative Guide Procedure 304-11 (4) (Compliance with New York City Right to Know Act/Right to Know Business Card). Thus, Police Officer Clena received the mitigated penalty of forfeiture of one (1) penalty day respectively for each substantiated allegation of misconduct for a total forfeiture of three (3) vacation days. Finally, Police Officer Clena will receive no disciplinary action for the sole alleged violation of Patrol Guide Procedure No. 212-11 (Investigative Encounters/Frisk).

Yours truly,

Lourdes Soto  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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